

26STCV05222 26STCV05222

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-27

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C07%2F27%2F2026

Source SHA-256: d4f63f748439fc89255064f6f61f6fe959f4113cae3a930b5cc3bbd66c77b7f8

Case Number: 26STCV05222 Hearing Date: July 27, 2026 Dept: 510

No. 6 - Panshi

LLC v. The Madison Collection LLC

Defendant The Madison

Collection LLC's Motion to Set Aside Entry of Default

Defendant

The Madison Collection LLC moves to set aside a default that was entered against it on March 30, 2026. Plaintiff did not file an opposition.

Code of Civil Procedure

section 473(b) provides, "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." "Because the law favors disposing of cases on their merits, 'any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.' " (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 980.)

Defense counsel shows the

default resulted from mistake, inadvertence, surprise, or excusable neglect.

Defense counsel states that, despite being retained by Defendant on March 4, 2026, he was unable to represent them because Defendant's manager's authority was being challenged by Plaintiff. (Lo Decl., ¶¶ 3-4.) Plaintiff told Defense counsel that a special meeting of members was called, and the members had voted to terminate Defense counsel's representation. (Id., ¶ 5.) While Defendant was seeking clarification on this issue, Plaintiff opportunistically entered this default against it. (Id., ¶¶ 6-7.) Vacating Defendant's default

serves the interests of justice.

Plaintiff will suffer no prejudice from vacating Defendant's default. Plaintiff filed this action in February 2026. No default judgment has been entered against Defendant. The case is still young.

Disposition

Defendant The Madison Collection LLC's motion to set aside entry of default is granted. The Court hereby vacates Defendant The Madison Collection LLC's default entered on March 30, 2026. Defendant shall file its proposed answer (attached as Exhibit A to the declaration of Kelvin J. Lo) forthwith.